

BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS AND THE STATE
BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2020-455

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
ADDICTION COUNSELING IN THE STATE OF COLORADO AND THE APPLICATION FOR
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
MELANIE MORRIS, LICENSE NO. ACD 1217, LPCC NO. 17298, LPC NO. (PENDING),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Addiction
Counselor Examiners and the State Board of Licensed Professional Counselor Examiners
(together, "Boards") and Melanie Morris ("Applicant") as follows:

1. On or about March 12, 2017, Applicant applied for a certificate to
practice addiction counseling ("CAC II") in the State of Colorado ("CAC II
Application"). Applicant received her CAC II certification on May 26, 2017, which
expired on August 31, 2019. On or about August 1, 2018, Applicant applied for
licensure to practice as an addiction counselor ("LAC") in the State of Colorado ("LAC
Application"), Applicant received her LAC on March 18, 2019, which is now active with
conditions. On or about July 13, 2019, Applicant applied for a registration to practice
professional counseling as a candidate ("LPCC") in the State of Colorado ("LPCC
Application"), Applicant received her LPCC on December 13, 2019, which is now active
with conditions.

2. On or about December 9, 2019, Applicant applied for a license to
practice professional counseling ("LPC") in the State of Colorado ("LPC Application"),
and her request is currently pending.

3. The Boards have jurisdiction over Applicant, the LAC, LPCC, and LPC
Applications, and the subject matter of this Stipulation and Final Agency Order
("Order").

4. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of Applicant's initial LAC and LPCC Applications and her LPC Application in the State of Colorado without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2020-455. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Applicant, as of the effective date of this Order.

5. Applicant admits the following:

- a. On or about March 12, 2017, Applicant applied for CAC II certification in the State of Colorado.
- b. On or about August 1, 2018, Applicant applied for a license to practice as a LAC in the State of Colorado.
- c. On or about July 13, 2019, Applicant applied for a registration to practice as a LPCC in the State of Colorado.
- d. On or about December 9, 2019, Applicant applied for a license to practice as a LPC in the State of Colorado, and her request is currently pending.
- e. On the CAC II, LAC, and LPCC Applications, Applicant answered "yes" to the question which states: "Has any disciplinary action ever been taken regarding any Psychotherapy/drug and alcohol services certification/license or any other healthcare or behavioral health license which you now hold or have ever held, including any disciplinary actions by the U.S. military, U.S. Public Health Service, or other U.S. federal governmental entity?"
- f. On the CAC II, LAC and LPCC Applications, Applicant answered "yes" to the question which states: "Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?"
- g. On the CAC II, LAC and LPCC Applications, Applicant answered "yes" to the question which states: "Have you ever been convicted of, plead guilty to or nolo contendere to a felony, or accepted a deferred judgment or deferred prosecution to a felony charge?"

- h. On the CAC II, LAC and LPCC Applications, Applicant answered “yes” to the question which states: “In the last five years, have you been diagnosed with or treated for a condition that significantly disturbs your cognition, behavior, or motor function, and that may impair your ability to practice psychotherapy safely and competently including but not limited to bipolar disorder, severe major depression, schizophrenia or other major psychotic disorder, a neurological illness, or sleep disorder?”
- i. On the LPC Application, Applicant answered “yes” to the question which states: “Have you ever had public disciplinary action taken against your license by any board or licensing agency in any state or country?”
- j. On or about September 3, 2004, Applicant pled guilty to Theft- \$500-\$15,000, a Class 4 Felony, in Case No. 2004CR3452, in District Court, El Paso County, Colorado. She was sentenced to five (5) years in prison, and received 306days credit for time served.
- k. On or about October 5, 2004, Applicant pled guilty to Forged Instrument- possession, a Class 6 felony, in Case No. 2004CR3082, in District Court, El Paso County, Colorado. She was sentenced to three (3) years in prison, and received 117days credit for time served, her sentence to run concurrently with Case No. 2004CR3452. Applicant was paroled on July 21, 2008.
- l. Applicant has admitted to two (2) felony convictions relating to substance abuse.
- m. On or around February 3, 2015, Applicant submitted to an evaluation, and the evaluator concluded that Applicant is not safe to practice with reasonable skill and safety to clients without monitoring under a treatment program.
- n. On July 23, 2015, Applicant entered into a Stipulation and Final Agency Order with the Board of Registered Psychotherapists in case number 2015-2642 (“2015 Order”) that included the terms as outlined below.
- o. On July 14, 2016, Applicant entered into a Stipulation and Final Agency Order with the Board of Registered Psychotherapists and the Board of Addiction Counselor Examiners in case numbers 2015-2642 and 2016-2126 (“2016 Order”) that included the terms as outlined below.

p. On May 26, 2017, Applicant entered into a Stipulation and Final Agency Order with the Board of Registered Psychotherapists and the Board of Addiction Counselor Examiners in case numbers 2015-2642, 2016-2126 and 2017-2067 (“2017 Order”) that included the terms as outlined below.

q. On or around March 18, 2019, Applicant entered into a Stipulation and Final Agency Order with the Board of Addiction Counselor Examiners in case number 2018-7946 (“March 2019 Order”) that included the terms as outlined below.

r. On or around December 13, 2019, Applicant entered into and is currently under a Stipulation and Final Agency Order with the Boards in case number 2019-5866 (“December 2019 Order”) that includes the terms as outlined below. This Order is a continuation of the December 2019 Order and is intended to also include Applicant’s LPC Application and case number 2020-455.

6. By virtue of the facts admitted in paragraph 5 above, Applicant admits and the Boards find that the above conduct is a violation of section 12-245-224(1)(a) and (e), C.R.S., which state:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(a) Has been convicted of or pled guilty or nolo contendere to a felony or received a deferred sentence to a felony charge. A certified copy of the judgment of a court of competent jurisdiction of the conviction or plea is conclusive evidence of the conviction or plea. In considering the disciplinary action, each board is governed by sections 12-20-202 (5) and 24-5-101;

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5).

7. By virtue of the admissions contained in paragraphs 5 and 6 above, Applicant specifically agrees to maintain her LAC and LPCC as previously granted and accept a LPC license subject to the terms and conditions outlined below. Applicant further agrees that the LPC Board is authorized by sections 12-245-214 and 12-245-226(3)(a), C.R.S., to grant Applicant a LPC license. Applicant consents to the following limitations to her LPC license within the meaning of section 24-4-104(11),

C.R.S. Applicant acknowledges that by accepting this LPC license in lieu of a formal hearing, Applicant waives all remedies outlined in sections 12-245-214 and 24-4-104(9), C.R.S.

PROBATION

8. Applicant's license to practice addiction counseling and license to practice professional counseling in the State of Colorado are hereby placed on probation for a minimum of five (5) years commencing from the effective date of the 2015 Order, the date Applicant was approved for her RP registration, or the date Applicant entered into a contract with Peer Assistance Services ("PAS"), whichever date was later. Credit toward satisfying the period of probation shall be given only during such periods of time that Applicant is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

- a. Applicant is not practicing as a LAC or LPC or engaged in the practice of addiction counseling or professional counseling in the State of Colorado;
- b. Applicant is not actively participating in a Board-approved peer assistance services program as set forth below in paragraphs 9 and 10 of this Order; and
- c. Applicant is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES

9. As a term of this Order and Applicant's probationary status, Applicant shall enter into and successfully complete a contract with Peer Assistance Services ("PAS") for a minimum period of five (5) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

10. If Applicant has not already done so, shall enter into a contract with PAS within fourteen (14) days from the effective date of this Order. Applicant agrees to cease the practice of addiction counseling and professional counseling as a candidate after fourteen (14) days until such time as Applicant enters into a contract with PAS.

- a. Urine/Blood Screens. If required as a term of her contract with PAS, Applicant shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Boards, Applicant's employer, or

Applicant's treatment program monitor, at a frequency determined by Applicant's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Applicant must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Applicant's treatment program with Applicant's application for discharge of the probation period.

b. Other Requirements. Applicant shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS contract signed by Applicant.

c. Releases. Applicant hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Applicant's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Applicant's case to the Boards upon its request. Applicant shall keep all releases current and in effect.

d. Completion of Program. If Applicant satisfactorily completes the treatment program, verification to the Boards by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Boards to verify Applicant's completion of treatment. It is Applicant's responsibility to ensure that PAS submits verification to the Boards of completion of treatment.

e. Withdrawal from Program. Applicant must immediately notify the Boards in writing if Applicant withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Applicant's treatment program.

TERMS AND CONDITIONS

11. Applicant will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

12. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

13. All expenses incurred or associated with any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Boards.

14. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Boards of the change of address within 30 days of the effective date of such change.

15. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

16. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

17. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

18. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

19. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

20. This Order constitutes the entire agreement between Applicant and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

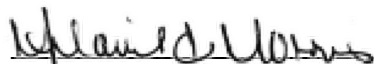
21. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Boards, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Boards. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Boards.

22. This Order shall be admissible as evidence at any hearing held before the Boards.

23. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

APPLICANT



MELANIE MORRIS

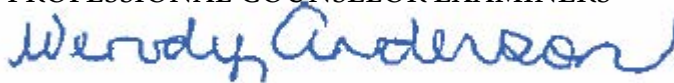
ACD 1217

LPCC 17298

LPC (Pending)

AGREED TO AND ORDERED BY:

STATE BOARD OF ADDICTION COUNSELOR
EXAMINERS AND THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



WENDY ANDERSON

Interim Program Director

Effective this 15th day of

May, 2020.